

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

Index No.:

-----X  
KEON SERRANO and SHAKEN MILLER,

## SUMMONS

Plaintiffs,

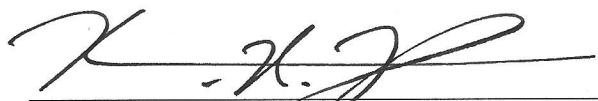
Plaintiffs designate  
KINGS County as the  
place of trial.

-against-

THE CITY OF NEW YORK, P.O. HUNG (Tax Reg.  
952869), P.O. KAWINASKI and SGT. McNEIL  
(Tax Reg. 922765),The basis of venue  
is where the Tort  
Arose.Defendants.  
-----XThe Tort Arose in:  
KINGS COUNTY, NEW  
YORK.

## To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA. NEW YORK  
OCTOBER 26, 2016KAREEM R. VESSUP  
THE LAW OFFICE OF KAREEM R. VESSUP  
ESQ.Attorneys for Plaintiffs  
KEON SERRANO and SHAKEN MILLER  
89-31 161<sup>st</sup> Street, Suite 705  
Jamaica, New York 11432  
Our File No. 13-1348TO: Corporation Counsel of  
The City of New York  
100 Church Street  
New York, NY 10007P.O. Hung  
1 Police Plaza  
New York, NY 10038

P.O. Kawinaski  
1 Police Plaza  
New York, NY 10038

Sgt. McNeil  
1 Police Plaza  
New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

-----X  
KEON SERRANO and SHAKEN MILLER,

Index No.:

Plaintiffs,

-against-

**VERIFIED COMPLAINT**

THE CITY OF NEW YORK, P.O. HUNG (Tax Reg.  
952869), P.O. KAWINASKI and SGT. McNEIL  
(Tax Reg. 922765),

Defendants.  
-----X

Plaintiffs **KEON SERRANO and SHAKEN MILLER**, by their attorneys THE LAW OFFICE OF KAREEM R. VESSUP ESQ., complaining of the Defendants, respectfully allege upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff **KEON SERRANO** was, and still is, a resident of the County of Kings, City and State of New York.

2. At all times herein mentioned, Plaintiff **SHAKEN MILLER** was, and still is, a resident of the County of Kings, City and State of New York.

3. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was, and still is, a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

4. Upon information and belief, at all times mentioned, Defendants **P.O. HUNG (Tax Reg. 952869), P.O. KAWINASKI and SGT. McNEIL (Tax Reg. 922765)** were and are Sergeants and/or Police Officers of the Defendant **THE CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and

employees of the Defendant, **THE CITY OF NEW YORK**.

#### **BACKGROUND FACTS**

5. That on or about October 26, 2013 at approximately 12:30pm Plaintiff **SHAKEN MILLER** and **KEON SERRANO** were lawful passengers within the New York City Transit Authority Subway System.

6. They entered the system at the Broadway Junction subway station and took the uptown A train until they reached the Jay Street Subway Station.

7. **SHAKEN MILLER** and **KEON SERRANO** exited the train and ascended the staircase on the Myrtle Avenue side of the station.

8. The two intended to cross over at the mezzanine section of the station to access the downtown platform and take the downtown A train back one stop to Hoyt and Schermerhorn Street to transfer to the G train.

9. While within the Myrtle Avenue mezzanine of the Jay Street Subway Station, Defendant **P.O. HUNG** stopped Plaintiff **SHAKEN MILLER** and demanded his metro card claiming that **SHAKEN MILLER** just came through the turnstile.

10. **SHAKEN MILLER** told Defendant **P.O. HUNG** that he did not just come through the turnstile and that he entered the subway system at the Broadway Junction station.

11. Defendant **P.O. HUNG** insisted that he saw Plaintiff **SHAKEN MILLER** come through the turnstile.



12. Plaintiff **SHAKEN MILLER** asked to speak to a supervisor.

13. Plaintiff **SHAKEN MILLER** was grabbed by Defendants and walked the entire length of the platform level to the other end of the platform.

14. Defendants then demanded that Plaintiff **SHAKEN MILLER** leave the train station. Plaintiff told the Defendants that he had to go to his job but these Defendants insisted on kicking Plaintiff out of the subway.

15. Plaintiff **SHAKEN MILLER** was dragged up the stairs from the platform to the Fulton Street mezzanine then was pushed through the exit door, thrown up against a wall and handcuffed.

16. At this time Plaintiff **KEON SERRANO** was asking the officers why they were treating **SHAKEN MILLER** in this way and confirming that **SHAKEN MILLER** had not just come through the turnstile.

17. **KEON SERRANO** also took out his cell phone in an attempt to record what was happening to **SHAKEN MILLER**.

18. Defendants told **KEON SERRANO** to shut the f--k up, they shoved **KEON SERRANO** up against the wall smacked his cell phone out of his hand and handcuffed him as well.

19. Once handcuffed **SHAKEN MILLER** asked Defendant **SGT. McNEIL** why they were being arrested and the Defendant said, "because we are the police and we can do what we want to do."

20. The Defendants frisked, searched and arrested Plaintiffs. Plaintiffs were brought to the NYPD Police Precinct inside of the Hoyt Schermerhorn Subway Station.

21. Plaintiffs were again searched within the precinct this time the search included removing articles of clothing, squatting and coughing.

22. Plaintiffs were held in the precinct for approximately 7-8 hours. They were then taken to Central Booking where they remained for another 4-5 hours.

23. Prior to seeing a Judge, the Plaintiffs were released from Central Booking and informed that the Kings County District Attorney's Office declined to prosecute their case.

#### **AS AND FOR A FIRST CAUSE OF ACTION**

24. Plaintiffs repeat, reiterate and re-allege all of the allegations contained in paragraphs "1" through "23" with full force and effect as though set forth at length herein.

25. That on October 26, 2013 at approximately 12:30pm within the Jay Street Subway station, the Defendants jointly and severally in their capacity as police officers and/or detectives, without any warrant or any other legal process and without any legal right arrested **KEON SERRANO** and **SHAKEN MILLER**.

26. The arrest and detention of Plaintiffs continued for approximately 12 hours until the District Attorney's Office declined to prosecute the case.

27. Plaintiffs did not consent to the arrest nor was the

arrest privileged under the law.

28. As a result of the Defendants' unlawful conduct Plaintiffs have been damaged.

**AS AND FOR A SECOND CAUSE OF ACTION**

29. Plaintiffs repeat, reiterate and re-allege all of the allegations contained in paragraphs "1" through "28" with full force and effect as though set forth at length herein.

30. That on October 26, 2013 at approximately 12:30pm within the Jay Street Subway station, the Defendants jointly and severally in their capacity as police officers and/or detectives without reasonable suspicion, probable cause or any other legal authority or right, caused Plaintiffs to experience the reasonable apprehension of a harmful or offensive touching.

31. Plaintiffs did not consent to the Defendants' conduct, nor was it privileged by law.

32. As a result of the Defendants' conduct Plaintiffs were damaged.

**AS AND FOR A THIRD CAUSE OF ACTION**

33. Plaintiffs repeat, reiterate and re-allege all of the allegations contained in paragraphs "1" through "32" with full force and effect as though set forth at length herein.

34. That on October 26, 2013 at approximately 12:30pm within the Jay Street Subway station, the Defendants jointly and

severally in their capacity as police officers and/or detectives, intentionally subjected Plaintiffs, **KEON SERRANO** and **SHAKEN MILLER** to a harmful or offensive physical contact by approaching them as a group with the intention to physically pat them down, frisk them, search them and arrest them.

35. Plaintiffs did not consent to Defendants' conduct nor was it privileged by law.

36. As a result of Defendants' unlawful conduct Plaintiffs were damaged.

#### **AS AND FOR A FOURTH CAUSE OF ACTION**

37. Plaintiffs repeat, reiterate and re-allege all of the allegations contained in paragraphs "1" through "36" with full force and effect as though set forth at length herein.

38. That on October 26, 2013 at approximately 12:30pm within the Jay Street subway station, the Defendants jointly and severally arrested Plaintiffs and submitted paperwork and documents with the intention of initiating a criminal prosecution against Plaintiffs.

39. This use of authority by Defendants was for a purpose other than its intended purpose. Specifically, these defendants arrested and sought to prosecute Plaintiffs based on knowingly false information.

40. Defendants acted without excuse or justification and their actions toward Plaintiffs were designed for an improper and unlawful purpose.

41. As a result of the Defendants' conduct Plaintiffs were damaged.

**AS AND FOR A FIFTH CAUSE OF ACTION**

42. Plaintiffs repeat, reiterate and re-allege all of the allegations contained in paragraphs "1" through "41" with full force and effect as though set forth at length herein.

43. That the Defendants **P.O. HUNG (Tax Reg. 952869)**, **P.O. KAWINASKI** and **SGT. McNEIL (Tax Reg. 922765)**, were at all times relevant, duly appointed and acting officers of the New York City Police Department.

44. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.

45. Plaintiffs **KEON SERRANO** and **SHAKEN MILLER** brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

46. That on October 26, 2013 at approximately 12:30pm within the Jay Street Subway station, the Defendants jointly and severally in their capacity as police officers and/or detectives, did falsely arrest Plaintiffs and detain them continuously for

approximately 12 hours without legal authority, consent or privilege.

47. That on October 26, 2013 at approximately 12:30pm within the Jay Street Subway station, the Defendants jointly and severally in their capacity as police officers and/or detectives, place Plaintiffs in imminent fear of harmful or offensive physical contact by approaching them with the intention of frisking, searching and arresting them. All of the above actions placed the Plaintiffs in imminent fear of a harmful or offensive physical contact. Plaintiff did not consent to the unlawful actions of the Defendants, nor were they authorized by law.

48. That on October 26, 2013 at approximately 12:30pm within the Jay Street Subway station, the Defendants jointly and severally in their capacity as police officers and/or detectives, without any warrant, order or other legal process and without any legal right, subjected Plaintiff to a harmful and/or offense touching in that they actually frisked, searched and arrested Plaintiffs. Plaintiff did not consent to this conduct nor was it authorized by law.

49. That on October 26, 2013 at approximately 12:30pm within the Jay Street Subway station, the Defendants jointly and severally in their capacity as police officers and/or detectives, intentionally and unlawfully subjected Plaintiff to being searched and seized without authority or consent.

50. That on October 26, 2013 at approximately 12:30pm within the Jay Street Subway station, the Defendants jointly and severally in their capacity as police officers and/or detectives, intentionally and unlawfully used an authorized police procedure to achieve an unauthorized and unlawful objective by stopping, frisking, arresting and detaining Plaintiffs without legal authority and transmitting information and documents to the Kings County District Attorney's Office to initiate a criminal prosecution against the Plaintiffs.

51. The above actions of the Defendants resulted in the Plaintiffs being deprived of the following rights under the United States Constitution:

- a. Freedom from assault;
- b. Freedom from battery;
- c. Freedom from warrantless search and seizure;
- d. Freedom from false arrest;
- e. Freedom from abuse of process;
- f. Freedom from summary punishment.

52. The Defendants subjected Plaintiffs to such deprivations, either in a malicious manner, or with reckless disregard of the Plaintiffs' rights, or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

53. As a direct and proximate result of the Defendants' acts Plaintiffs have been damaged.

**AS AND FOR SIXTH CAUSE OF ACTION**

54. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "53" with full force and effect as though set forth at length herein.

55. Defendant **THE CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest and/or search warrant and that its police officers should only arrest or search an individual when they have probable cause.

56. Defendant **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiffs (or similarly situated individuals) or without the possession of a warrant or other legal authority, said police officers of **THE CITY OF NEW YORK** are not to frisk and/or pat down individuals where probable cause or reasonable suspicion is lacking.

57. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, that probable cause must be present before an individual residence can be searched by NYPD officers without lawfully issued search warrants.

58. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused the Defendant police officers to assault, batter and falsely arrest



Plaintiffs under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

**AS AND FOR AN SEVENTH CAUSE OF ACTION**

59. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "58" as if set forth at length herein.

60. Defendant **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the individual Defendants knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact these officers were not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals or search individual's homes and destroy their personal property without a warrant. Defendant failed to act reasonably in supervising, disciplining, removing or otherwise taking appropriate action against these officers to protect the Plaintiff herein and other members of the community similarly situated.

61. As a direct and proximate result of the Defendant's failures Plaintiff was damaged.

**AS AND FOR A EIGHTH CAUSE OF ACTION**

62. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "61" as if set forth at length herein.

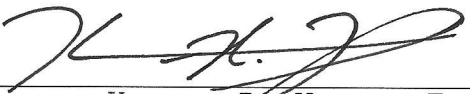
63. That on October 26, 2013 at approximately 12:30pm within the Jay Street Subway station, the Defendants jointly and severally in their capacity as police officers and/or detectives, owed Plaintiffs **KEON SERRANO** and **SHAKEN MILLER** a duty to act reasonably in the performance of their duties and responsibilities.

64. That on October 26, 2013 at approximately 12:30pm within the Jay Street Subway station, the Defendants jointly and severally in their capacity as police officers and/or detectives breached their duty owed to the Plaintiffs by conducting themselves in a manner that was excessive, overly aggressive, willful, wanton, grossly negligent, reckless, negligent and outside the bounds of the laws of New York and The United States all in disregard of Plaintiffs' rights as citizens of the United States and the State of New York.

65. That on October 26, 2013 at approximately 12:30pm within the Jay Street Subway station, the Defendants jointly and severally in their capacity as police officers and/or detectives failed to conduct themselves consistent with the standards of the NYPD as stated in the NYPD Patrol Guide.

66. As a direct and proximate result of the Defendants conduct on October 26, 2013 Plaintiff was damaged.

**WHEREFORE**, Plaintiffs demand judgment against the Defendants, together with the costs and disbursements of this action in an amount that exceeds the jurisdictional limit of all lower courts, together with punitive damages, attorney's fees and costs for bringing this case.

  
Kareem R. Vessup Esq.

**VERIFICATION**

KAREEM R. VESSUP, affirms pursuant to CPLR §2106 and under penalty of perjury:

That affirmant is the attorney for the plaintiffs in the action within; that affirmant has read the foregoing

**COMPLAINT**

and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes it to be true.

The reason that this verification is not made by plaintiffs and is made by affirmant is that plaintiffs are not presently in the county where the attorneys for the plaintiffs have their office.

Affirmant further says that the source of affirmant's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from investigations made on behalf of said plaintiffs.

DATED: JAMAICA, NEW YORK  
OCTOBER 26, 2016

  
KAREEM R. VESSUP

Index No.

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

---

KEON SERRANO and SHAKEN MILLER,

Plaintiffs,

- against -

THE CITY OF NEW YORK, P.O. HUNG (Tax Reg. 952869), P.O. KAWINASKI  
and SGT. McNEIL (Tax Reg. 922765),

Defendants.

---

**SUMMONS AND COMPLAINT**

---

**LAW OFFICE OF KAREEM R. VESSUP ESQ.**

Attorneys for Plaintiffs

**KEON SERRANO and SHAKEN MILLER**

89-31 161<sup>st</sup> Street, Suite 705

Jamaica, New York 11432

Tel (718) 219-8744

Fax (718) 228-7733

---

TO: NYC Law Department  
100 Church Street  
New York, NY 10007